

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                |                                     |                                                        |                                               |                                            |
|---------------------------------------------------|------------------------------------------------|-------------------------------------|--------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Lydia Woolley                    | Team:<br>Squad #13                             | CCRB Case #:<br>202107676           | <input checked="" type="checkbox"/> Force              | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                   |                                                |                                     | <input checked="" type="checkbox"/> Abuse              | <input checked="" type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 12/16/2021 5:30 PM  | Location of Incident:<br>Outside of § 87(2)(b) | 18 Mo. SOL<br>6/16/2023             | Precinct:<br>103                                       |                                               |                                            |
| Date/Time CV Reported<br>Fri, 12/17/2021 10:33 AM | CV Reported At:<br>CCRB                        | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Fri, 12/17/2021 10:33 AM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
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| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. PO Kevin Oshea         | 00692  | 968674 | 103 PCT |
| 2. Officers               |        |        | 103 PCT |
| 3. PO Paul Petrone        | 30070  | 967254 | 103 PCT |
| 4. PO Michael Losco       | 02648  | 969916 | 103 PCT |
| 5. PO Paul Brooks         | 30863  | 968291 | 103 PCT |
| 6. PO Khrishan Jainaraine | 15624  | 960718 | 103 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. PO Anthony Fletcher | 17302     | 967875 | 103 PCT  |
| 2. LT James Gatto      | 00000     | 945750 | 103 PCT  |
| 3. PO Melissa Gillott  | 26391     | 967085 | 103 PCT  |
| 4. PO Daniel Henao     | 15119     | 966616 | 103 PCT  |
| 5. PO Alexander Lewis  | 27001     | 967164 | 103 PCT  |

| Officer(s)          | Allegation                                                                    | Investigator Recommendation |
|---------------------|-------------------------------------------------------------------------------|-----------------------------|
| A . PO Paul Petrone | Abuse: Police Officer Paul Petrone threatened to seize § 87(2)(b) property.   | A . Exonerated              |
| B . PO Paul Petrone | Abuse: Police Officer Paul Petrone issued a retaliatory summons to § 87(2)(b) | B . Substantiated           |
| C . PO Paul Petrone | Abuse: Police Officer Paul Petrone seized § 87(2)(b) property.                | C . Substantiated           |
| D . PO Paul Petrone | Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)   | D . Exonerated              |
| E . PO Paul Petrone | Force: Police Officer Paul Petrone used physical force against § 87(2)(b)     | E . Substantiated           |
| F . PO Paul Brooks  | Force: Police Officer Paul Brooks used physical force against § 87(2)(b)      | F . Exonerated              |
| G . PO Paul Brooks  | Abuse: Police Officer Paul Brooks threatened to arrest § 87(2)(b)             | G . Exonerated              |

| Officer(s)                 | Allegation                                                                                                | Investigator Recommendation |
|----------------------------|-----------------------------------------------------------------------------------------------------------|-----------------------------|
| H . PO Paul Petrone        | Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)                               | H . Substantiated           |
| I . PO Paul Petrone        | Off. Language: Police Officer Paul Petrone made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) | I . Substantiated           |
| J . PO Paul Petrone        | Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)                               | J . Substantiated           |
| K . PO Paul Petrone        | Abuse: Police Officer Paul Petrone issued an unlawful summons to § 87(2)(b)                               | K . Substantiated           |
| L . PO Paul Petrone        | Abuse: Police Officer Paul Petrone issued a retaliatory summons to § 87(2)(b)                             | L . Substantiated           |
| M . PO Paul Petrone        | Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)                               | M . Substantiated           |
| N . PO Paul Petrone        | Abuse: Police Officer Paul Petrone failed to obtain language interpretation services for § 87(2)(b)       | N . Substantiated           |
| O . PO Paul Petrone        | Abuse: Police Officer Paul Petrone threatened to issue a summons to § 87(2)(b)                            | O . Exonerated              |
| P . PO Paul Petrone        | Abuse: Police Officer Paul Petrone threatened individuals.                                                | P . Exonerated              |
| Q . PO Paul Petrone        | Force: Police Officer Paul Petrone used physical force against § 87(2)(b)                                 | Q . Exonerated              |
| R . PO Michael Losco       | Force: Police Officer Michael Losco used physical force against § 87(2)(b)                                | R . Exonerated              |
| S . PO Paul Brooks         | Force: Police Officer Paul Brooks used physical force against § 87(2)(b)                                  | S . Exonerated              |
| T . PO Michael Losco       | Force: Police Officer Michael Losco used physical force against § 87(2)(b)                                | T . Exonerated              |
| U . PO Khrishan Jainaraine | Force: Police Officer Khrishan Jainaraine used physical force against § 87(2)(b)                          | U . Substantiated           |
| V . PO Kevin Oshea         | Force: Police Officer Kevin Oshea used physical force against § 87(2)(b)                                  | V . Exonerated              |
| W . Officers               | Force: Officers used physical force against § 87(2)(b)                                                    | W . Unfounded               |
| X . Officers               | Force: Officers used physical force against § 87(2)(b)                                                    | X . Unfounded               |
| Y . PO Paul Petrone        | Abuse: Police Officer Paul Petrone threatened to arrest § 87(2)(b)                                        | Y . Unfounded               |
| Z . PO Khrishan Jainaraine | Abuse: Police Officer Khrishan Jainaraine interfered with § 87(2)(b) use of a recording device.           | Z . Unfounded               |
| AA. PO Michael Losco       | Force: Police Officer Michael Losco tightly handcuffed § 87(2)(b)                                         | AA. Unfounded               |
| AB. PO Paul Petrone        | Discourtesy: Police Officer Paul Petrone spoke discourteously to an individual.                           | AB. Substantiated           |
| AC. PO Paul Petrone        | Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)                               | AC. Substantiated           |
| AD. Officers               | Abuse: Officers damaged § 87(2)(b) property.                                                              | AD. Unfounded               |
| § 87(2)(g), § 87(4-b)      |                                                                                                           |                             |
| § 87(2)(g), § 87(4-b)      |                                                                                                           |                             |

### Case Summary

On December 16, 2021, Lieutenant James Gatto of the 103rd Precinct called IAB to report that § 87(2)(b) filed this complaint on behalf of himself, his wife, § 87(2)(b), his sons, § 87(2)(b) and § 87(2)(b) the latter of whom was 16 years old, and his daughter, § 87(2)(b) who was 14 years old. On December 17, 2021, it was received at the CCRB. On December 17, 2021, § 87(2)(b) filed a duplicate complaint via the CCRB website.

On December 16, 2021, at approximately 4:51 p.m., PO Paul Petrone and PO Michael Losco, both of the 103rd Precinct, responded to a 911 call reporting that § 87(2)(b) was vandalizing a BMW outside of § 87(2)(b) in Queens. PO Kevin O'Shea and PO Paul Brooks, both of the 103rd Precinct, arrived as backup. PO Petrone threatened to tow the BMW (**Allegation A: Abuse of Authority, Exonerated**). After using profanity toward the officers, § 87(2)(b) entered a silver Honda Ridgeline parked across the street. PO Petrone told PO Losco to issue a summons, and informed § 87(2)(b) that the silver Honda Ridgeline would be towed as well (**Allegations B-C: Abuse of Authority, Substantiated**). PO Petrone spoke discourteously to § 87(2)(b) and shoved him in the chest (**Allegation D: Discourtesy, Exonerated; Allegation E: Force, Substantiated**). § 87(2)(b) approached, and PO Brooks pushed him twice and threatened to arrest him (**Allegation F: Force, Exonerated; Allegation G: Abuse of Authority, Exonerated**). PO Petrone spoke discourteously and offensively to § 87(2)(b) and discourteously to § 87(2)(b) (**Allegation H: Discourtesy, Substantiated; Allegation I: Offensive Language, Substantiated; Allegation J: Discourtesy, Substantiated**). PO Petrone told PO Losco to issue a second summons for the silver Honda Ridgeline (**Allegations K and L: Abuse of Authority, Substantiated**). PO Petrone said "I don't care" when § 87(2)(b) spoke to him in Spanish and failed to obtain language interpretation services for her (**Allegation M: Discourtesy, Substantiated; Allegation N: Abuse of Authority, Substantiated**). PO Petrone threatened to issue § 87(2)(b) a summons and said he could detain her family (**Allegations O and P: Abuse of Authority, Exonerated**).

PO Khrishan Jainaraine and PO Anthony Fletcher, both of the 103rd Precinct, arrived as additional backup. PO Petrone, PO Losco, and PO Brooks used physical force against § 87(2)(b) and handcuffed him (**Allegations Q, R, and S: Force, Exonerated**). PO Losco pushed § 87(2)(b) (**Allegation T: Force, Exonerated**). PO Jainaraine pushed § 87(2)(b) (**Allegation U: Force, Substantiated**), and PO O'Shea pushed § 87(2)(b) (**Allegation V: Force, Exonerated**). Officers allegedly kicked and dragged § 87(2)(b) (**Allegations W and X: Force, Unfounded**). PO Petrone allegedly threatened to take § 87(2)(b) to jail (**Allegation Y: Abuse of Authority, Unfounded**). PO Jainaraine allegedly told § 87(2)(b) not to record officers (**Allegation Z: Abuse of Authority, Unfounded**). PO Losco allegedly tightened § 87(2)(b) handcuffs (**Allegation AA: Force, Unfounded**). PO Petrone spoke discourteously to an unidentified bystander (**Allegation AB: Discourtesy, Substantiated**). In the police car, PO Petrone spoke discourteously to § 87(2)(b) (**Allegation AC: Discourtesy, Substantiated**). Officers allegedly damaged the silver Honda Ridgeline (**Allegation AD: Abuse of Authority, Unfounded**). PO Losco testified that he transported § 87(2)(b) to the stationhouse, issued him a summons for disorderly conduct, and then released him. However, NYPD Legal was unable to find any record of this summons (**BR 01**). No other arrests or summonses resulted from this incident.

§ 87(2)(g), § 87(4-b)

The investigation obtained 19 BWC videos of the incident, recorded by PO Petrone, PO Losco, PO Brooks, PO O'Shea, PO Jainaraine, PO Fletcher, Lieutenant James Gatto, PO Melissa Gillot, PO

Daniel Henao, and PO Alexander Lewis, all of the 103<sup>rd</sup> Precinct. The videos are in IAs #72-90 (BR 02-20) and summarized in IAs #127 and 168 (BR 21 – BR 22).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Paul Petrone threatened to seize § 87(2)(b) property.**

**Allegation (B) Abuse of Authority: Police Officer Paul Petrone issued a retaliatory summons to § 87(2)(b)**

**Allegation (C) Abuse of Authority: Police Officer Paul Petrone seized § 87(2)(b) property.**

**Allegation (K) Abuse of Authority: Police Officer Paul Petrone issued an unlawful summons to § 87(2)(b)**

**Allegation (L) Abuse of Authority: Police Officer Paul Petrone issued a retaliatory summons to § 87(2)(b)**

The 911 call audio (BR 48) revealed that an individual called to report a skinny, Indian or Hispanic man in his 20s was breaking in the windows of a sports car near a grey pick-up truck, which the caller believed belonged to the man, and was still on scene. Event documents (BR 23) and police radio communications (BR 49) reveal that this information was relayed to officers via radio transmission and that PO Petrone and PO Losco responded.

PO Losco's BWC begins after he and PO Petrone arrived (see OPMN) (BR 03). The footage opens with § 87(2)(b) approaching the front windshield of a silver Honda Ridgeline, removing a piece of paper, and tearing it into small pieces. The Ridgeline is parked on the side of the street, several feet from a grey and black BMW with scorch marks on the side and a shattered front windshield, which is parked near the middle of the street. § 87(2)(b) and § 87(2)(b) brother, stand next to the bed of the pick-up truck and PO Brooks stands near the BMW. The officers and the civilians appear to converse, though audio does not begin until the 01:00 minute mark on the media-player timestamp, visible at the bottom of the screen.

PO Petrone's BWC more clearly captures the remainder of this portion of the incident (BR 05). Shortly after § 87(2)(b) rips up the paper, at the 01:30 minute mark on the media-player timestamp, § 87(2)(b) and an unknown individual remove tires from the back of the silver Honda Ridgeline and discuss the tires with PO Petrone. At 02:00, PO Petrone looks at the silver Honda Ridgeline and tells PO Losco, "He shouldn't have parked like a dick or been a dick," and adds that PO Losco can issue a summons every seven minutes. Between 03:00-04:45, PO Petrone pushes § 87(2)(b) and they use profanity toward each other (see Allegations D, E, H, and I).

Beginning at 04:20, PO Petrone tells § 87(2)(b) "Take everything out of the car because both of them are going." From 05:20-07:00, PO Petrone tells PO Losco that § 87(2)(b) is being "an asshole" and the officers discuss § 87(2)(b) prior arrests. PO Petrone withdraws his cell phone and appears to run the license plate or VIN number of the silver Honda Ridgeline. At 06:20, the officers stand near the truck and § 87(2)(b) says, "I paid \$8,000 for my truck, okay," apparently referring to the silver Honda Ridgeline. PO Petrone replies, "No habla español," which translates to "does not speak Spanish (sic)," and walks away (see Allegation J). At 07:00, § 87(2)(b) says he will not pay for anything related to the car. PO Petrone turns to PO Losco and says, "Mike, write it again. Write it again. Don't care. Same thing." PO Losco writes another summons. PO Petrone adds, "Hit him with it, Mike."

Beginning at 08:30, PO Petrone steps away from the crowd and speaks to someone over the phone, confirming that a tow truck has already been called and is around the corner. At 10:00, the tow truck arrives, and PO Petrone tells PO Brooks and PO Losco, “This CCRB is gonna be fire. They’re gonna ask us questions, and Mike [Losco] – Mike’s gonna be like – ‘I don’t know, man. They were being mean.’” At 10:30, PO Petrone tells the tow truck driver that he initially responded regarding the BMW. PO Petrone says, “And then, guy was being a dick. Said this was his car.” PO Petrone turns toward the silver Honda Ridgeline and continues, “We ran it. Didn’t come back to him, so we’re gonna tow this one too.” At 11:20, the officers discuss the incident and the Honda Ridgeline’s front tires can be seen parked approximately two feet from the curb, at a slight angle from the back wheels, which are approximately half a foot from the curb. PO Petrone tells the officers that “this one” will be taken, apparently referring to the Ridgeline, and that the BMW will be taken to the Department of Sanitation.

At 11:45, PO Petrone speaks to someone over the phone, stating, “The kid was giving us lip, being an asshole, piece of shit, screaming his head off at us and stuff. So, I was like, screw it, we’re gonna take his car – it was his car, the blue BMW – he’s like, ‘Yeah, you guys can take that, I don’t care. Fuck you.’ And then he was getting in and out of this silver truck. So, I was like, ‘Do you own this car?’ He’s like, ‘No. It’s my dad’s. I’m like, ‘Okay.’ So, I ran the VIN on it. Didn’t come back on anything. So, we’re re-towing his car now. Yeah, guy wants to be a piece of shit? No problem.” From 12:40-30:35, PO Petrone speaks on the phone several times, speaks with § 87(2)(b) and § 87(2)(b) about how he is going to take the car, discusses the tow with the tow truck driver, and speaks with PO Losco.

At 30:35, PO Petrone walks up to § 87(2)(b) and § 87(2)(b) who are speaking with the tow truck drivers. They walk to the silver Honda Ridgeline, § 87(2)(b) stands on the street next to the driver’s door, PO Petrone tells her to get on the sidewalk, she says she will not, and they discuss why the car is being towed. § 87(2)(b) points to § 87(2)(b) and says she owns the vehicle. PO Petrone says they are towing the car because “the VIN doesn’t match the car.” PO Petrone says the Department of Sanitation will come for the BMW in a few days, § 87(2)(b) speaks in Spanish, § 87(2)(b) says she just bought the vehicle, and PO Petrone says temporary plates are illegal. § 87(2)(b) and § 87(2)(b) walk up to them and stand near the car. § 87(2)(b) says § 87(2)(b) has papers to prove ownership of the vehicle and PO Petrone says it does not matter. PO Petrone and § 87(2)(b) discuss why the BMW will be taken by the Department of Sanitation. PO Petrone says the Ridgeline will be taken by the tow company and tells the civilians to get on the sidewalk.

Beginning at the 34:00 mark, § 87(2)(b) says, “Suck my dick,” to PO Petrone, who turns to § 87(2)(b) and § 87(2)(b) and says, “There we are. That’s exactly why I’m taking the car.” PO Petrone walks away, speaks into his radio, and talks on the phone to request backup. He provides their location and says, “We’re probably going to end up fighting these kids.” PO Petrone discusses the tow with PO Losco, the tow truck driver, the civilians, and someone on the phone. At 39:28, he has an altercation with § 87(2)(b) who is handcuffed and placed in a police car (see Allegations P-Q). At 44:00, the silver Honda Ridgeline is pulled onto a tow truck’s flatbed. At 44:40, PO Petrone recounts the incident to PO Jainaraine, stating, “Kid’s sitting on [the car] just chirping at us, screaming, ‘Suck my dick,’ ‘You won’t get shit,’ ‘Fuck you.’ So, this car was parked on an angle so I’m like – ‘Mike, fuck it. Write this [the Ridgeline] a couple A’s [A summonses] for angled parking.’” At 51:20, the Ridgeline is attached to the tow truck, and PO Jainaraine conducts a search on PO Petrone’s phone showing that the VIN and license plates on the silver Honda Ridgeline are valid. PO Petrone says they can still tow it because it was parked illegally and tells the tow truck driver to take it.

§ 87(2)(b) testified that when he arrived, four officers were speaking to § 87(2)(b) telling him they were going to seize his blue BMW which had caught on fire earlier that day. § 87(2)(b) told the officers the car was not working, removed items from the BMW, and placed them into the silver Honda Ridgeline, which was legally parked. PO Petrone said the Ridgeline was illegally parked, wrote a summons for illegal parking, and officers said they were going to tow the silver Honda Ridgeline. The Ridgeline was towed but the BMW was not.

§ 87(2)(b) testified that she was buying groceries when she received a phone call from her husband, § 87(2)(b) who told her that officers were towing their silver Honda Ridgeline, which was registered to § 87(2)(b). She arrived and officers towed the car. She denied that the Ridgeline was parked improperly and did not provide any testimony about the parking summonses. § 87(2)(b) later paid \$300 to retrieve the Ridgeline. § 87(2)(b) was largely consistent with § 87(2)(b), § 87(2)(b), and § 87(2)(b) were uncooperative with the investigation (see IAs for contact attempts).

PO Petrone testified that on the incident date, he and PO Losco responded to three calls regarding § 87(2)(b) damaging his car. When they responded to the third call, PO Petrone told § 87(2)(b) that he was going to tow the BMW because it was severely damaged and had neither a license plate nor registration. PO Petrone notified NYPD Rotation Tow, and over the phone, a tow truck driver advised that the BMW would have to be towed by the Department of Sanitation because it was severely damaged, which would take five or ten days. § 87(2)(b) approached PO Petrone and PO Losco, cursed at them, and sat on a silver Honda Ridgeline across the street. PO Petrone checked its VIN number, which did not match the car registration. PO Losco issued multiple summonses to the car for “angled parking.” Using his discretion and because two summonses had already been issued to the car, PO Petrone called NYPD rotation towing, and the silver truck was towed away. PO Petrone did not know why multiple summonses were issued for the same infraction. He believed officers were allowed to issue a new A-summons every five minutes for the same infraction. After the incident, he never saw the BMW or Ridgeline again.

PO Losco’s statement was largely consistent with PO Petrone’s. At 5:15 p.m., PO Losco issued the Ridgeline an A-summons for “angled parking” and told § 87(2)(b) to repark the BMW. § 87(2)(b) took the A-summons, ripped it up, and threw it onto the ground. An officer, PO Losco did not remember who, decided to tow the Ridgeline. PO Losco issued a second summons for “angled parking” so the tow truck driver could see a summons on the windshield and for no other reason.

Derelict cars may be removed from streets by the New York Department of Sanitation. NYPD Patrol Guide, Procedure 218-21 (**BR 24**). In DCT Disciplinary Cases No. 80228/04 & 80229/04 (**BR 50**), an officer forfeited 10 vacation days and received reinstruction regarding the Department’s Courtesy, Professionalism, and Respect policy for issuing summonses as a weapon of retaliation against a complainant who called him a “fucking liar” in traffic court and another who told him to have a “nice fucking day” during a car stop. The officer was found to have “allowed his personal feelings to cloud his judgment as an officer of the law.”

Officers may issue only one summons for the same violation at the same location on the same day. NYPD Patrol Guide Procedure 209-07 (**BR 28**). A car is not eligible for the NYPD’s Rotation Tow removal if its owner is on scene and recovers the car. NYPD Patrol Guide, Procedure 218-21 (**BR 24**). When an illegally parked car is hooked to a tow truck and the owner requests it be released, the car shall be unhooked and released for a fee. NYPD Patrol Guide, Procedure 209-32 (**BR 27**).

§ 87(2)(b) alleged that officers told § 87(2)(b) they would seize his BMW, which had caught on fire that day. The BWC footage shows PO Petrone tell § 87(2)(b) that both the Ridgeline and BMW, which has scorch marks on the side and a shattered windshield, “are going” and that the Department of Sanitation would take the BMW in several days. BWC footage does not capture the BMW ultimately being towed. As it is undisputed that § 87(2)(b) BMW was damaged beyond repair, § 87(2)(g) and it is recommended that **Allegation A be Exonerated.**

PO Petrone repeatedly told multiple officers, the tow truck driver, and § 87(2)(b) family members that he instructed PO Losco to write parking summonses because § 87(2)(b) cursed at him. § 87(2)(g)

§ 87(2)(b) it is thus recommended that **Allegation B be Substantiated.**

§ 87(2)(b) referred to the Ridgeline as his truck, and § 87(2)(b) repeatedly offered to show proof of ownership of the vehicle. Yet PO Petrone responded that it would be towed due to the inconsistent license plate and VIN number. However, PO Jainaraine’s BWC footage shows that PO Petrone later learned there was no discrepancy between the Ridgeline’s license plate, which was valid, and the VIN number. § 87(2)(g)

§ 87(2)(b) it is thus recommended that **Allegation C be Substantiated.**

As described above, the investigation determined that PO Petrone told PO Losco to issue both summonses because § 87(2)(b) used profanity toward him. As per PO Petrone’s BWC footage, after § 87(2)(b) said he would not pay for anything related to the car, PO Petrone turned to PO Losco and said to “Write it again. Don’t care. Same thing.” § 87(2)(g)

§ 87(2)(b) it is thus recommended that **Allegations K and L be Substantiated.**

**Allegation (D) Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)**

**Allegation (E) Force: Police Officer Paul Petrone used physical force against § 87(2)(b)**

**Allegation (H) Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)**

**Allegation (I) Offensive Language: Police Officer Paul Petrone made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)**

PO Brooks’ BWC footage opens with him standing near the silver Honda Ridgeline with the other officers, and § 87(2)(b) and § 87(2)(b) standing next to it (BR 02). After the civilians begin taking the tires out of the truck bed, PO Brooks walks up to the truck bed and leans toward it, though the contents are not visible due to the height of the truck. At 02:55 on the media-player timestamp, visible at the bottom of the screen, PO Brooks stands next to the truck and shines his flashlight into the window. He walks toward the bed of the truck, § 87(2)(b) head and

shoulders become visible on the other side of the truck, and PO Brooks tells § 87(2)(b) “Watch what you do with that.” He then tells PO Petrone that § 87(2)(b) handed a “blade” to § 87(2)(b). At no point is the alleged blade visible.

PO Petrone’s BWC footage captures the remainder of this portion of the incident more clearly (**BR 05**). At 03:20 on the media-player timestamp, after PO Brooks mentions the blade, PO Brooks walks to § 87(2)(b) and asks what he needs the blade for. § 87(2)(b) tells PO Brooks to mind his own business. PO Petrone replies, “How about you don’t tell us how to do our fucking job.” § 87(2)(b) standing at least 15 feet from PO Petrone and on the other side of the van, says he is not scared of anyone and waves his arms up and down on either side of his body with his palms open. PO Petrone says, “What are you gonna do?”, walks up to § 87(2)(b) and shoves him in the chest with two open hands, causing § 87(2)(b) to take several steps backwards. § 87(2)(b) says, “Fuck out of here.” PO Petrone replies, “Back the fuck up.”

At 03:50, § 87(2)(b) says he will not leave and, “You’re doing fucking illegal shit right now.” PO Petrone replies, “Illegal shit? You’re parked illegally. You don’t own either fucking car... you took an illegal fucking blade out of the car.” § 87(2)(b) tells PO Petrone to “shut the fuck up” and asks if PO Petrone wants to arrest him. PO Petrone replies, “No. It’s okay. Because you’re a piece of shit, bro. Fuck you. Fuck you, bro.” At 04:20, PO Petrone tells § 87(2)(b) to take everything out of the car, because “both are going.” § 87(2)(b) tells PO Petrone that his handcuffs do not scare him. PO Petrone replies, “You won’t do shit, bro.” § 87(2)(b) adds, “Laugh like a little bitch, because that’s what you is.” PO Petrone replies, “You’re a little bitch too, bro. Okay, bitch.”

No civilian mentioned this portion of the incident or said a blade was involved in the incident. § 87(2)(b) was uncooperative with the investigation (see IAs for contact attempts).

PO Petrone’s statement was largely consistent with the BWC footage. He testified that the civilians, including § 87(2)(b) walked toward the officers and yelled at them, and that § 87(2)(b) walked to an unknown location with the blade, which he referred to as a machete, though PO Petrone did not see the machete or know whether it was illegal to possess. PO Petrone used profanity toward § 87(2)(b) because he was in the middle of a heated argument in a heated environment. PO Petrone “lost [his] cool” and pushed § 87(2)(b) because § 87(2)(b) was in a “fighting stance,” cursing at officers, and said the officers could not tow the car.

Officers must render their services with courtesy and civility and maintain a higher standard of integrity than is generally expected of others. NYPD Patrol Guide, Procedure 200-02 (**BR 29**). When a police officer uses an otherwise impolite word during a stressful street encounter where that officer is attempting to maintain control of the situation, that officer’s language may not rise to the level of actionable misconduct. DCT Case #2004-79627 (**BR 30**). Members of the service are prohibited from using discourteous or disrespectful remarks regarding someone’s gender. NYPD Patrol Guide, Procedure 203-10 (**BR 25**).

Officers must only use force when it is reasonable. When appropriate and consistent with personal safety, MOS will use de-escalation techniques to safely gain voluntary compliance. In determining whether force is reasonable, members of service should consider: 1) the nature and severity of the circumstances, 2) actions taken by the subject, 3) duration of the action, 4) immediacy of the perceived threat or harm to anyone nearby, 5) whether the subject is actively resisting, 6) whether the subject is attempting to flee, 7) number of subjects in comparison to MOS, 8) size, age, and condition of the subject compared to MOS, 9) subject’s violent history, if known, 10) the presence

of a hostile crowd or agitators, and 11) whether the subject is under the influence of a stimulant or narcotics. NYPD Patrol Guide, Procedure 221-01 (**BR 31**).

While PO Petrone said he did not see the “blade,” the BWC footage shows § 87(2)(b) yelled at and used profanity toward officers while standing in a group of people which outnumbered them, and shows PO Brooks then told PO Petrone that § 87(2)(b) handed a blade to § 87(2)(b).

§ 87(2)(g)  
and it is recommended that **Allegation E** be **Exonerated**.

However, after § 87(2)(b) moved away from the car, PO Petrone said, “Illegal shit,” “You don’t own either fucking car,” “You took an illegal fucking blade,” “You’re a piece of shit, bro. Fuck you. Fuck you,” and “You won’t do shit.” § 87(2)(g)

it is therefore recommended that **Allegation I** be closed as **Substantiated**.

§ 87(2)(g)  
PO Petrone stated that when he pushed § 87(2)(b) he believed § 87(2)(b) had the machete, and § 87(2)(b) was not under arrest at the time and did not threaten to harm anyone. While PO Petrone described § 87(2)(b) standing in a “fighting stance,” the BWC footage captures § 87(2)(b) waving his arms laterally with open hands while he stood at least 15 feet away from PO Petrone. § 87(2)(g)

it is therefore recommended that **Allegation F** be **Substantiated**.

**Allegation (F) Force: Police Officer Paul Brooks used physical force against § 87(2)(b)**  
**Allegation (G) Abuse of Authority: Police Officer Paul Brooks threatened to arrest § 87(2)(b)**

As described above, beginning at the 03:30 mark on the media-player timestamp of PO Brooks’ BWC footage (**BR 02**), PO Petrone tells § 87(2)(b) to “back the fuck up” and pushes him. As PO Petrone does so, § 87(2)(b) quickly walks toward them. PO Brooks stretches his arm out, places his hand on § 87(2)(b) chest, and pushes him back. § 87(2)(b) takes two steps backwards and tells PO Brooks not to touch him. PO Brooks repeatedly tells § 87(2)(b) to back up. § 87(2)(b) does not back up. Approximately five civilians are gathered nearby and appear to watch the interaction. PO Brooks grabs § 87(2)(b) by the forearm and says, “Take a walk.” § 87(2)(b) steps approximately eight feet away and continues to tell PO Brooks not to touch him. PO Brooks tells § 87(2)(b) to walk away. PO Brooks tells § 87(2)(b) that § 87(2)(b) handed him a machete. § 87(2)(b) opens his jacket and repeatedly yells, “Check me,” while leaning toward PO Brooks. PO Brooks puts his open palm onto § 87(2)(b) chest, pushes him two steps back, and says, “Back up. Back up out my face.” § 87(2)(b)

§ 87(2)(b) walks toward § 87(2)(b) and tells PO Brooks not to touch him. PO Brooks points at § 87(2)(b) and says, “You come in my face again, I’m-a put you in cuffs,” two times.

§ 87(2)(b) testified that officers generally said “shit” and “fuck” throughout this incident, although he did not specify who made which statements. § 87(2)(b) and § 87(2)(b) did not allege that PO Brooks pushed § 87(2)(b) or threatened him with arrest. § 87(2)(b) and § 87(2)(b) were uncooperative with the investigation (see IAs for contact attempts).

PO Brooks testified that § 87(2)(b) approached the officers in a “very aggressive” manner. He placed his hands on § 87(2)(b) to keep him back from the other officers and to tell him to leave. PO Brooks told § 87(2)(b) that he could be arrested because he committed disorderly conduct by placing his hands in PO Brooks’ face.

A person is committing disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, they congregate with other people in a public place and refuse to comply with a lawful order of the police to disperse. NYS Law Section 240.20 (BR 32). Force may be used when it is reasonable to ensure the safety of a member of service or a third person, or when it is reasonable to place a person in custody. NYPD Patrol Guide, Procedure 221-01 (BR 31).

As § 87(2)(b) quickly walked toward PO Petrone and § 87(2)(b) while they were arguing and was repeatedly instructed to back up, then leaned toward PO Brooks while yelling “check me,” § 87(2)(g)

It is therefore recommended that **Allegation F** be **Exonerated**.

§ 87(2)(g) did not comply with PO Brooks’ repeated orders to move to the end of the block, and yelled in a manner which BWC footage shows drew the attention of several passersby. § 87(2)(g)

it is thus recommended that **Allegation G** be **Exonerated**.

**Allegation (J) Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)**

At the 06:20 minute mark on the media-player timestamp of PO Petrone’s BWC footage (**BR 05**), approximately two minutes after PO Brooks guides § 87(2)(b) away from PO Petrone and § 87(2)(b) the officers stand near the truck and discuss § 87(2)(b) prior arrests. § 87(2)(b) says he will not give the officers the keys to the car, PO Petrone says they do not need the keys, and § 87(2)(b) says, “I paid \$8,000, okay,” with a Spanish accent, apparently referring to the silver Honda Ridgeline. PO Petrone replies, “No habla español,” which translates to “does not speak Spanish (sic),” and walks away.

No civilian mentioned this aspect of the incident to the CCRB and § 87(2)(b) and § 87(2)(b) were uncooperative with the investigation (see IAs for contact attempts).

PO Petrone testified that he made this statement because it sounded like § 87(2)(b) was either speaking “insanely broken English” or Spanish and he did not understand what he said.

NYPD Patrol Guide, Procedure 200-02, notes that officers must render their services with courtesy and civility (BR 29). NYPD Patrol Guide, Procedure 212-90, states that officers should obtain the services of an interpreter or utilize the language skills of a bilingual officer or civilian when they encounter a Limited English Proficient person and interpretation is necessary.

§ 87(2)(g)

. It is therefore recommended that Allegation J be Substantiated.

**Allegation (M) Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)**  
**Allegation (N) Abuse of Authority: Police Officer Paul Petrone failed to obtain language interpretation services for § 87(2)(b)**

§ 87(2)(b) testified that while officers were waiting to have her truck towed, she approached them and asked in English, “Speak Spanish?” § 87(2)(b) first language is Spanish. The officers looked at each other, laughed, and did not obtain an interpreter. Later, her friend arrived and interpreted for her.

PO Petrone’s BWC footage (BR 05), beginning at 32:50, shows him standing in front of the silver Honda in front of § 87(2)(b) who stands directly next to it with § 87(2)(b). PO Petrone explains what happened with § 87(2)(b). While he speaks, § 87(2)(b) speaks in Spanish out of frame. § 87(2)(b) says if PO Petrone needs proof that § 87(2)(b) is the owner, she can provide it. PO Petrone says the Department of Sanitation will come for that in a few days. § 87(2)(b) speaks to § 87(2)(b) in Spanish, and § 87(2)(b) begins speaking in Spanish while PO Petrone says the car will be taken away by the tow company. § 87(2)(b) tells § 87(2)(b) that the car will be taken away in Spanish. § 87(2)(b) says, “You can’t take the car. I’ve got the papers, I bought this car,” in Spanish. § 87(2)(b) tells PO Petrone he cannot take the car and speaks to § 87(2)(b) in Spanish. PO Petrone tells § 87(2)(b) to get onto the sidewalk. § 87(2)(b) speaks in Spanish, and PO Petrone replies, “I don’t care. I don’t speak Spanish. I’m sorry. No habla español. Lo siento,” which translates to “He doesn’t speak Spanish. I’m sorry.” § 87(2)(b) looks to PO Petrone’s left and says, “Why are you laughing? It’s not funny.” No one replies. PO Brooks’ BWC footage (BR 02), beginning at 33:50, shows that when § 87(2)(b) asks, “Why are you laughing?”, she is speaking to a private tow truck operator, not a member of the NYPD.

PO Petrone said he did not obtain a Spanish language interpreter or a bilingual officer during this incident because he had no need to speak with the civilians who appeared to only speak Spanish, and he did not believe the Spanish-speakers to be part of the original call or investigation. He said he was “only really acknowledging the people who [spoke] English because I can understand them.”

NYPD Patrol Guide, Procedure 200-02, notes that officers must render their services with courtesy and civility (BR 29). NYPD Patrol Guide, Procedure 212-90 (BR 51), states that officers should obtain the services of an interpreter or utilize the language skills of a bilingual officer or civilian when they encounter a Limited English Proficient person and interpretation is necessary.

The BWC footage does not capture § 87(2)(b) asking if PO Petrone speaks Spanish or requesting an interpreter, and § 87(2)(b) occasionally translates between § 87(2)(b) and PO Petrone.

However, when PO Petrone tells § 87(2)(b) to move away from the car, § 87(2)(b) responds in Spanish and does not move. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation M** be **Substantiated**.

§ 87(2)(g)

While PO Petrone said the Spanish-speaking civilians were not involved in the incident, § 87(2)(b) § 87(2)(g) that she possessed paperwork for the Ridgeline, was the wife and mother of the civilians involved in the incident § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation N** be **Substantiated**.

**Allegation (O) Abuse of Authority: Police Officer Paul Petrone threatened to issue a summons to § 87(2)(b)**

**Allegation (P) Abuse of Authority: Police Officer Paul Petrone threatened individuals.**

In PO Petrone's BWC footage (BR 05), beginning at the 31:13 mark of the media player timestamp, a tow truck is visible near the Ridgeline with the bed extended. The tow truck driver tells PO Petrone that § 87(2)(b) who stands in between the Ridgeline and the tow truck next to the driver's door, needs to stand away from the car on the sidewalk. PO Petrone walks up to her and tells her to get on the sidewalk. They discuss the reason for the car being towed. § 87(2)(b) walks in front of the Ridgeline and § 87(2)(b) stands next to § 87(2)(b) and PO Petrone discuss who owns the vehicle, that the VIN does not match the license plates, that the license plates are not legal, and that the BMW will be taken. § 87(2)(b) walks up behind § 87(2)(b) speaks in Spanish and § 87(2)(b) says PO Petrone cannot take the vehicle. PO Petrone says, "You do not make the rules. Right now, you need to get on the sidewalk." § 87(2)(b) says something in Spanish and PO Petrone tells her to stand on the sidewalk. PO Petrone says it is parked illegally and § 87(2)(b) says it is not. § 87(2)(b) and PO Petrone discuss their previous interaction, § 87(2)(b) tells PO Petrone to "suck my dick," and PO Petrone points toward § 87(2)(b) and says, "Okay, ma'am, you need to get on the sidewalk as well as everybody else." He says the tow truck company is taking the vehicle and § 87(2)(b) says they are not. PO Petrone walks away and speaks into his radio.

Beginning at 37:30, PO Petrone walks back to the Ridgeline and stands several feet away. § 87(2)(b) and § 87(2)(b) lean against the Ridgeline in between the car and the tow truck, § 87(2)(b) stands in front of the Ridgeline, and § 87(2)(b) sits on the front bumper. PO Petrone tells the civilians the car is going to get towed, § 87(2)(b) says, "Don't move, don't move," says his daughter is 14 years old, and PO Petrone says, "No, absolutely not," and discusses how § 87(2)(b) told officers to "suck [his] dick." PO Petrone walks away and says, "We're going to end up disconnin' the whole family," into his radio. PO Petrone walks toward § 87(2)(b) and tells the civilians that the car is getting taken and that "you are moving, that's

the thing.” § 87(2)(b) says he cannot touch her because she is underage, he says that does not matter, and he says if she ignores his lawful order to step back, he will issue her a summons for disorderly conduct. He adds that he can place § 87(2)(b) and her entire family in handcuffs and detain them at the stationhouse. He reiterates that everyone, including § 87(2)(b) and § 87(2)(b) has to move away from the truck so it can be towed.

No civilian mentioned this aspect of the incident to the CCRB and § 87(2)(b) and § 87(2)(b) were uncooperative with the investigation (see IAs for contact attempts).

PO Petrone testified that the tow truck driver said he could not take the car if someone was sitting on it, so officers informed the civilians in front of the silver truck that they could be detained if they did not walk away.

A person is committing disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, they congregate with other people in a public place and refuse to comply with a lawful order of the police to disperse. NYS Penal Law Section 240.20 (BR 32). A person commits obstruction of governmental administration (OGA) if they attempt to prevent a public servant from performing an official function by intimidation, physical force or interference. NYS Penal Law Section 195.05 (BR 47).

§ 87(2)(g)

it is thus recommended that Allegations O and P be closed as Exonerated.

**Allegation (O) Force: Police Officer Paul Petrone used physical force against § 87(2)(b)**

**Allegation (R) Force: Police Officer Michael Losco used physical force against § 87(2)(b)**

**Allegation (S) Force: Police Officer Paul Brooks used physical force against § 87(2)(b)**

**Allegation (T) Force: Police Officer Michael Losco used physical force against § 87(2)(b)**

**Allegation (U) Force: Police Officer Khrishan Jainaraine used physical force against § 87(2)(b)**

**Allegation (V) Force: Police Officer Kevin Oshea used physical force against § 87(2)(b)**

**Allegation (W) Force: Officers used physical force against § 87(2)(b)**

**Allegation (X) Force: Officers used physical force against § 87(2)(b)**

**Allegation (Y) Abuse of Authority: Police Officer Paul Petrone threatened to arrest § 87(2)(b)**

**Allegation (Z) Abuse of Authority: Police Officer Khrishan Jainaraine interfered with § 87(2)(b) use of a recording device.**

As discussed above, in PO Petrone’s BWC footage (BR 05), beginning at the 31:13 mark of the media player timestamp, the tow truck extends its bed. The tow truck driver tells PO Petrone that § 87(2)(b) who stands in between the Ridgeline and the tow truck next to the driver’s door, needs to stand away from the car on the sidewalk. Beginning at 39:00, PO Petrone is captured standing next to PO Losco, in front of § 87(2)(b) § 87(2)(b) and § 87(2)(b) who are standing in front of the silver Honda Ridgeline shortly after PO Petrone threatened to summons and arrest them. PO Petrone says, “It’s gonna end up us putting our hands on every single one of you. I don’t want to do that. I’ve given you so many warnings.” PO O’Shea, PO Brooks, PO

Jainaraine, and PO Fletcher surround § 87(2)(b) and § 87(2)(b) who holds his cell phone up in front of him with the camera facing the officers. § 87(2)(b) begins to repeatedly tell PO Losco to “shut up,” adding, “you look stupid.” PO Petrone walks toward § 87(2)(b) walks in between § 87(2)(b) and the officers, and PO Petrone places two hands on § 87(2)(b) waist and pushes him toward the front of the silver Honda Ridgeline. § 87(2)(b) steps backward slightly, then steps toward PO Petrone. PO Losco steps toward § 87(2)(b) steps in front of PO Losco and says, “Don’t be touching my dad.” PO Losco pushes § 87(2)(b) and § 87(2)(b) back. § 87(2)(b) spreads his arms and does not move back. PO Petrone grabs § 87(2)(b) and pulls him back to the car. PO Brooks and PO O’Shea place § 87(2)(b) in handcuffs.

PO Losco’s BWC footage (**BR 03**), beginning at the 39:30 minute mark, shows that as PO Petrone pushes § 87(2)(b) the pushes cause § 87(2)(b) to walk backward closer to § 87(2)(b) who walks backward as well. § 87(2)(b) is then pulled away from § 87(2)(b) who remains standing where he was. PO Losco pushes § 87(2)(b) backward by placing an outstretched hand on § 87(2)(b) chest twice.

PO Brooks’ BWC footage (**BR 08**), beginning at the 1:05 minute mark, shows PO Petrone walk up to § 87(2)(b) push him, and place his right hand behind § 87(2)(b) head such that he touches the back of § 87(2)(b) upper neck and the back of his head. The BWC footage then moves so § 87(2)(b) is out of frame for several seconds. At 01:10, PO Brooks begins to handcuff § 87(2)(b)

PO Jainaraine’s BWC footage (**BR 06**), beginning at the 01:15 minute mark, shows that while PO Petrone pulls § 87(2)(b) back toward the car, he grabs the back of § 87(2)(b) for less than one second. While § 87(2)(b) is being handcuffed, § 87(2)(b) stands between two parked cars. PO Jainaraine repeatedly tells her to get onto the sidewalk. She does not move. PO Jainaraine grabs her by the forearm and pushes her onto the sidewalk. § 87(2)(b) yells, “Don’t fucking touch me.”

PO O’Shea’s second BWC video (**BR 04**), beginning at 04:10 minute mark, shows § 87(2)(b) standing next to the back corner of the silver Honda Ridgeline as the tow truck begins to lift it onto the flatbed. PO O’Shea tells her to back up. She does not move. PO O’Shea grabs her by the left bicep and right wrist and pushes her back approximately one step. § 87(2)(b) tells him not to touch her. PO O’Shea says he pushed her so she would not get hit by the car that was being towed.

§ 87(2)(b) testimony was largely consistent with the BWC footage.

§ 87(2)(b) testified that she, § 87(2)(b) and § 87(2)(b) stood next to the silver Ridgeline and told the officers they were not going to take the truck. PO Petrone grabbed § 87(2)(b) and pushed and pulled her to move her away. § 87(2)(b) complained that § 87(2)(b) was only 14 years old. PO Petrone replied that this did not matter and that he was going to take her to jail. At the same time, officers grabbed § 87(2)(b) and held him by an unspecified part of his neck. Other officers, whom she could not describe, kicked § 87(2)(b) feet and dragged his legs. § 87(2)(b) was thrown onto the car and handcuffed.

§ 87(2)(b) alleged that officers pushed her family members while yelling, “Get out of the way.” The officers pushed the family back. One of three black male officers grabbed her wrists and arm and pushed § 87(2)(b) back, causing her to sprain her ankle. PO O’Shea pushed her onto the sidewalk by bumping his chest into her chest. PO Jainaraine told § 87(2)(b) that he was

not allowed to record without the officers' consent and pushed § 87(2)(b) chest. Following this incident, § 87(2)(b) arm was swollen. She did not provide documentation of her injuries and it is unknown to the investigation whether she sought treatment for them.

§ 87(2)(b) and § 87(2)(b) were uncooperative with the investigation (see IAs for contact attempts).

PO Petrone testified that as the officers began to push § 87(2)(b) family members to the sidewalk, § 87(2)(b) tensed his body and pulled his hands away from them. PO Petrone grabbed § 87(2)(b) to place him in handcuffs for the officers' safety. PO Petrone may have incidentally grabbed the back of § 87(2)(b) neck in the struggle to place him into handcuffs.

PO Losco testified that he grabbed § 87(2)(b) because he was not getting onto the sidewalk while the officers were trying to tow the silver Honda Ridgeline. He pushed § 87(2)(b) back because officers were trying to handcuff § 87(2)(b) and § 87(2)(b) was getting in the way.

PO Jainaraine said he pushed § 87(2)(b) from the street to the sidewalk so she would not get hurt while the car was being towed. PO O'Shea said he gently guided § 87(2)(b) to the sidewalk to keep her safe because tow truck cables can snap and the car being towed can roll backward onto anyone standing immediately behind it.

A person commits obstruction of governmental administration (OGA) if they attempt to prevent a public servant from performing an official function by intimidation, physical force or interference. NYS Law Section 195.05 (**BR 47**). Force may be used when it is reasonable to ensure the safety of a member of service or a third person, or when it is reasonable to gain control or custody of a person. NYPD Patrol Guide, Procedure 221-01 (**BR 31**). In determining whether force is reasonable, members of service should consider: 1) the nature and severity of the circumstances, 2) actions taken by the subject, 3) duration of the action, 4) immediacy of the perceived threat or harm to anyone nearby, 5) whether the subject is actively resisting, 6) whether the subject is attempting to flee, 7) number of subjects in comparison to MOS, 8) size, age, and condition of the subject compared to MOS, 9) subject's violent history, if known, 10) the presence of a hostile crowd or agitators, and 11) whether the subject is under the influence of a stimulant or narcotics.

§ 87(2)(b) and § 87(2)(b) all stood in front of the Honda Ridgeline after officers repeatedly told them to move. As the officers walked toward the civilians, § 87(2)(b) stepped in between them and § 87(2)(b) then continually moved toward PO Petrone, and PO Petrone attempted to push § 87(2)(b) back. The officers then pulled § 87(2)(b) arms behind him in order to handcuff him as he repeatedly moved his arms away from the officers. Once § 87(2)(b) was placed in handcuffs, all force ceased. § 87(2)(g)

It is therefore recommended that **Allegations Q, R, and T be Exonerated.**

BWC shows that PO Petrone did not say § 87(2)(b) was going to jail, as described by § 87(2)(b) and while PO Jainaraine testified that he pushed § 87(2)(b) to get her away from the Ridgeline as it was being towed, at the point that the officers began pushing § 87(2)(b) and § 87(2)(b) the Honda Ridgeline was not yet on the tow truck bed, and thus did not pose a threat of falling on the civilians. Additionally, while PO Losco said he pushed § 87(2)(b) in part because § 87(2)(b) was interfering in § 87(2)(b) arrest, the BWC footage shows that § 87(2)(b) moved in between the officers and § 87(2)(b) then officers

pushed § 87(2)(b) backward into § 87(2)(b) then pulled him several feet away from § 87(2)(b) at which point PO Losco pushed § 87(2)(b) in the chest.

§ 87(2)(g)

it is thus recommended that **Allegation S and U be Substantiated.**

The tow truck driver told the officers that the civilians needed to move to the sidewalk before he could tow the Ridgeline. At the point that PO O'Shea pushed § 87(2)(b) the Ridgeline was being towed onto the tow truck, and she was standing behind it. He told her to move, she did not, then he held each of her arms and moved her onto the sidewalk. He then let go and told her he moved her for her safety, § 87(2)(g)

It is thus recommended that **Allegation V be Exonerated.**

§ 87(2)(b) said PO Jainaraine told § 87(2)(b) he could not record the officers. While § 87(2)(b) holds up his phone as if recording the officers for the majority of the incident, the BWC footage shows that PO Jainaraine did not tell him not to do so. § 87(2)(g)

the BWC footage shows the officers did not take such steps while putting § 87(2)(b) into handcuffs and that PO Petrone did not threaten to take § 87(2)(b) to jail at any point throughout the incident. It is thus recommended that **Allegations W-Z be closed as Unfounded.**

**Allegation (AA) Force: Police Officer Michael Losco tightly handcuffed § 87(2)(b)**

**Allegation (AB) Discourtesy: Police Officer Paul Petrone spoke discourteously to an individual.**

**Allegation (AC) Discourtesy: Police Officer Paul Petrone spoke discourteously to § 87(2)(b)**

PO Petrone's BWC footage (BR 05), beginning at the 43:00 minute mark on the media-player timestamp, visible at the bottom of the screen, shows him escort § 87(2)(b) to the police car after he is handcuffed. At 43:10, a black or Hispanic male in a hooded sweatshirt walks past the police car and says, "That's fucking crazy." PO Petrone replies, "Bro, little kids want to act hard as fuck." At 49:10, PO Petrone enters the police car, where § 87(2)(b) is seated in the back. He tells § 87(2)(b) that he will get a disorderly conduct summons, adding, "That's it. No bullshit." At 49:39, PO Petrone says, "Alright bro, I didn't want it to get like that at all. I didn't want to be an asshole to people." PO Petrone recounts the incident, adding, "Shit happened. It is what it is.... We're gonna go back to the precinct, write you a summons. I'm gonna need your name, address, and all that shit." § 87(2)(b) does not say anything about his handcuffs. No officer appears to tighten his handcuffs.

At 1:00:25, § 87(2)(b) asks PO Petrone to loosen his handcuffs. PO Petrone says he will take the handcuffs off at the stationhouse. They arrive at the stationhouse, and at 1:18:25, PO Petrone

says he will loosen § 87(2)(b) handcuffs. When he tries to loosen them, he says, “I’m just gonna take them off,” then removes them.

§ 87(2)(b) testified that when PO Petrone and PO Losco escorted him to the police car, he complained that his handcuffs were too tight. Outside of the police car, PO Losco tightened § 87(2)(b) handcuffs without saying anything, and the handcuffs cut into his wrists. He did not mention the officers’ use of profanity. § 87(2)(b) testified that following this incident, § 87(2)(b) had bloody wrists and redness on his wrists. § 87(2)(b) and § 87(2)(b) were uncooperative with the investigation (see IAs for contact attempts). The investigation was unable to identify the man in the sweatshirt who is captured in the BWC footage.

§ 87(2)(b) and § 87(2)(b) emailed the investigation photographs of § 87(2)(b) wrists, which appear swollen (BR 33) and bloody (BR 34).

PO Losco testified that § 87(2)(b) never complained about his handcuffs. He did not remember anyone tightening the handcuffs.

PO Petrone’s statement was largely consistent with PO Losco’s. He testified that he told the man in the sweatshirt “that’s fucking crazy” and that kids want to act “hard as fuck” for “banter” or as “a joke.” There was no specific reason he used the word “fuck.” There was no specific reason he said “bullshit” or “shit” to § 87(2)(b).

Officers must render their services with courtesy and civility. NYPD Patrol Guide, Procedure 200-02 (BR 29). When a police officer uses an otherwise impolite word during a stressful street encounter where that officer is attempting to maintain control of the situation, that officer’s verbal slip does not rise to the level of actionable misconduct. DCT Case #2004-79627 (BR 30).

As BWC footage captured the entirety of the officers’ interactions with § 87(2)(b) after he was handcuffed and shows that no officer tightened his handcuffs after he asked for them to be loosened, § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation AA** be closed as **Unfounded**.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegations AB and AC** be **Substantiated**.

**Allegation (AD) Abuse of Authority: Officers damaged § 87(2)(b) property.**

PO Petrone’s BWC footage (BR 05), beginning at the 03:08 minute mark of the media player timestamp, visible at the bottom of the screen, shows a dent on the rear left side of § 87(2)(b) silver Honda Ridgeline prior to it being towed. The tow truck driver, who appears at 10:10, is a private tow operator, not a member of the NYPD. At 47:30, the silver Honda Ridgeline is lifted onto a flatbed, and there is no apparent damage visible.

§ 87(2)(b) testified that while officers towed the silver truck, it was dented. § 87(2)(b) did not provide testimony regarding this allegation. However, at the end of her interview, § 87(2)(b) got on the line and alleged that when officers towed the silver Honda Ridgeline, they damaged the rear corner of the car. § 87(2)(b) was otherwise uncooperative with the investigation (see IAs for contact attempts), as was § 87(2)(b). § 87(2)(b) testified that the silver Honda

Ridgeline was damaged when it was towed. However, he was not sure which part of the car was specifically damaged.

No interviewed officer observed the silver Honda Ridgeline being damaged in any way.

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] it is recommended that Allegation AD be Unfounded.

§ 87(2)(g), § 87(4-b) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

#### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] have been a party (BR 36-40).
- PO Petrone has been a member-of-service for three years and has been a subject in five CCRB complaints and 16 allegations, of which one was substantiated. § 87(2)(g) [REDACTED]
  - Case #202001336 involved a substantiated allegation of Abuse of Authority – Failure to provide RTKA card against PO Petrone. The Board recommended Command Discipline A and the NYPD did not impose discipline.
- PO Losco has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Jainaraine has been a member-of-service for six years and has been a subject in five CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO O’Shea has been a member-of-service for two years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- PO Brooks has been a member-of-service for two years and has been a subject in two CCRB complaints and six allegations, neither of which were substantiated. § 87(2)(g) [REDACTED]

#### Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 6, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 41).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]  
[REDACTED]  
[REDACTED]

